BUSINESS CENTRE AGREEMENT

This BUSINESS CENTRE AGREEMENT (hereinafter referred to as the "Agreement") is made at _____, on this __ day of _____, 2016 by and between:

BENNETT, COLEMAN AND COMPANY LIMITED, a company incorporated under the Companies Act, 1956, having its registered office at The Times of India Building, Dr. D.N. Road, Mumbai 400 001, CIN No. U22120MH1913PLC000391 hereinafter referred to as the 'BCCL' (which expression shall unless it be repugnant to the context or meaning thereof mean and include its successors and permitted assigns) of the ONE PART

AND

_____, a company incorporated under the Companies Act, 1956, having its registered office at _____, hereinafter referred to as the 'Service Provider' (which expression shall unless it be repugnant to the context or meaning thereof mean and include its successors and permitted assigns) of the OTHER PART

Both the **Service Provider** and BCCL are hereinafter referred to singly as the Party and collectively as the Parties.

WHEREAS:

A. The Service Provider is in the business of setting up, operating and managing business centers for providing services of IT infrastructure and support, networking and miscellaneous facilities to its clients.

B. The Service Provider is sufficiently entitled and authorized to provide IT related services and permit its clients to use its various workstations for availing the said services at its business centre at _____ (hereinafter referred to as "Business Centre").

C. BCCL being in need of said services with modern amenities and infrastructure for the purposes of its business has approached the Service Provider with its specifications and requirements. BCCL being satisfied with the infrastructure and modern amenities has agreed to avail of services provided by the Service Provider.

D. This Agreement sets out the terms and conditions on which the Service Provider provides and BCCL avails the said services for its business purposes.

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:

1. SERVICES

1.1. The Service Provider hereby agrees to provide to BCCL Services (as defined hereinafter) by way of _____ workstations/ cabins along with the amenities and infrastructure as per mutual agreement between BCCL and Service Provider (which is more particularly described and listed out in **Annexure A** of this Agreement) at Business Centre for a term of __ months effective from _____ ("Effective Date") subject to extension as mutually agreed between the Parties.

2. CONSIDERATION

2.1. The provision of the Services with workstations and making available the amenities and infrastructure by the Service Provider to BCCL is hereinafter referred to as "Said Services", as further defined in **Annexure A** and **Annexure B**.

2.2. In consideration of the Services, BCCL shall pay to the Service Provider, monthly compensation of Rs. _____/- (Rupees _____), commencing from the Effective Date exclusive of service tax and all other taxes as applicable from time to time during the Term, which shall be borne by BCCL, except Income Tax which shall be paid by the

Service Provider directly. BCCL may deduct tax at source before remitting the amount to the Service Provider at the applicable rates and it shall provide a certificate of deduction to the Service Provider, as per the provisions of Income Tax Act, 1961.

2.3. Electricity Charges shall be borne by BCCL as per actuals as per the reading of electricity meter provided by Service Provider.

2.4. The Service Provider will raise invoice for monthly compensation plus applicable service tax (currently @ 10.30%) every month latest by the __ day (or the next working day if the same is not a working day) of the same month. BCCL shall pay monthly compensation and service tax as per the said invoice every month in advance by the __ day of the same month, after deduction of TDS at applicable rates. If the said invoice has been issued in accordance with this clause, the Service Provider shall be entitled to levy interest at the rate of 18% p.a. for any delay in payment of monthly compensation by BCCL.

3. SECURITY DEPOSIT

On the date of execution of this Agreement, BCCL shall deposit and, during the term of this Agreement, keep deposited with the Service Provider Rs. _____/- (Rupees _____) as and by way of interest free refundable security deposit. The Service Provider shall return the Security Deposit to BCCL upon the expiry of the term of this Agreement or on its sooner determination.

4. SERVICE PROVIDER'S COVENANTS

4.1. The Service Provider is the sole and absolute possession of the Business Centre and it has the rights to provide the Services in terms of this Agreement.

4.2. The Service Provider declares that it has taken all the necessary permissions, licences and approvals from the Government and other authorities for running of the Business Centre.

4.3. The Service Provider shall carry out at its own cost all major repairs in respect of the Business Centre and shall effect such repairs promptly upon BCCL notifying the Service Provider of the need for any of such repair; provided, however that the minor repairs such as minor electricity faults, replacement of fused bulbs, electrical consumables, broken windowpanes and glasses internally etc. may be effected by BCCL at its own cost. The Service Provider will allow BCCL to carry out such minor repairs as may be necessary to the Workstations or any fittings and fixtures as per its requirement after taking prior approval of the Service Provider. However, BCCL shall not effect any structural alterations to the Business Centre and Workstations.

4.4. BCCL shall be entitled to use the Business Centre and Workstations for the purposes of all of its business activities, present and in future, without any hindrance from Service Provider or its representatives during the term of this Agreement.

4.5. The Service Provider shall pay all taxes, cesses and shall provide for 24 hours continuous water and electricity supply in the Business Center and other Services more specifically referred in **Annexure B** required for functioning of BCCL at the Business Centre.

4.6. The Service Provider shall at all times, after written notice of three (3) working days, be entitled to inspect the Business Centre on a working weekday so as to satisfy itself in regard to its maintenance and in regard to the performance of the terms and conditions of this Agreement by BCCL.

4.7. The Service Provider shall obtain and keep valid, subsisting and renew all the statutory permissions / registrations / licenses / approvals etc. in adherence of the terms and conditions of this Agreement.

5. BCCL'S COVENANTS

5.1. BCCL shall take all steps necessary to maintain the Business Centre and Workstations in a state of good repair free form damages, breakages and in usable or operable condition (normal wear and tear excepted).

5.2. BCCL shall cease to use the Business Centre and Workstations, remove all its employees, agents and things ("belongings") from the Business Centre and vacate the same on the date of expiry of the term of this Agreement or earlier termination of this Agreement.

5.3. BCCL agrees and undertakes that nothing in this Agreement provides BCCL with any tenancy, lease, license or any other similar rights whatsoever. BCCL agrees that it shall not avail of or pursue any rights more than the rights as granted in pursuance of this Agreement.

5.4. BCCL shall not make any alterations or additions or attachment to the Business Centre. However, the Service Provider shall make such arrangements for any reasonable requirement of BCCL in its sole discretion

5.5. BCCL shall keep the Business Centre and Workstations safe, clean and in a good state of repair and condition at its cost and it shall be liable for any intentional, permanent and irreparable damage (if so mutually quantified pursuant to a joint inspection) caused to the Business Centre and Workstations.

5.6. BCCL shall use the Business Centre and Workstations only for its lawful business purposes and shall at no time carry on or permit to be carried on from the Business Centre any illegal or offensive trade and BCCL shall not store or allow to be stored any combustibles in the Business Centre.

5.7. BCCL shall not be entitled to permit any third parties to use or occupy the Business Centre and Workstations or any portion thereof other than its divisions, subsidiaries, agents or service providers.

5.8. BCCL agrees to vacate the Workstations in as good a condition in which it had been delivered to BCCL by the Service Provider, (subject however, to natural wear & tear) on the expiry (unless renewed) or earlier termination of this Agreement.

6. LOCK-IN AND TERMINATION

6.1. Termination by BCCL: The Parties shall not be entitled to terminate this Agreement for __ months from the effective date ("Lock-in period"). Notwithstanding the above, this is the Lock-in period is subject to reasons beyond control of the Parties that require termination in accordance with clause 8 of this Agreement.

6.2. Post Lock-in period either Party shall be entitled terminate this Agreement by giving an advance ___ month written notice to the other Party.

6.3. In the event a Party terminates this Agreement in its Lock-in period, other than as provided in clause 8, the other Party shall be entitled to the balance of monthly compensation of the unexpired Lock-in period or such amounts may be recovered/ adjusted from the Security Deposit, as the case may be.

6.4. Termination in case of material breach: Notwithstanding anything contained in this clause in the event of either Party committing any material breach of the terms and conditions of this Agreement, at anytime during the term of this Agreement and fails to remedy or make good such breach within a period of fifteen (15) days from the day of receipt of such notice of breach in writing from the aggrieved Party, in that event, without prejudice to the other rights and remedies, the aggrieved Party may terminate the Agreement forthwith without any further notice, reference or recourse to the other Party.

7. EFFECTS OF TERMINATION

7.1 After termination of this Agreement, BCCL shall not be entitled to any Services and it shall vacate the Business Centre in terms of this Agreement simultaneous to the Service Provider handing over the Security Deposit to BCCL. However, in the event of non

refund of Security Deposit due to any reason whatsoever, BCCL shall not be required to vacate/ hand over/ part with the possession of the Business Centre and the Workstations till date of refund of Security Deposit or the Security Deposit. Failure of the Service Provider in refunding the security deposit shall make the Service Provider liable for payment of interest @ 18% p.a. from the date of expiry or termination of this agreement till date of repayment thereof subject to.

7.2 If there are any arrears of compensation payable by BCCL to the Service Provider and/ or deductions hereof or in the event of termination by BCCL during the lock in period, the respective amounts shall be deducted from the Security Deposit. In the event Service Provider is unable to pay interest free refundable security deposit to BCCL on expiry of this agreement or on earlier termination thereof, BCCL shall have the unrestricted right to occupy the said Business Centre and the Workstations till such date the Service Provider refunds the security deposit to BCCL. BCCL shall not be liable to pay the compensation for availing the services during that period, by reason of non-refund of the security deposit.

7.3 At the time of BCCL vacating the Business Centre and Workstations, BCCL shall be entitled to take away all their equipment and appliances and Service Provider shall not object to the same.

7.3 Upon termination in the event of BCCL failing to hand over vacant charge of the Workstations to the Service Provider as aforesaid despite the Service Provider confirming in writing its readiness and willingness to refund and repay the Security Deposit to BCCL simultaneously with BCCL handing over the Workstations to BCCL, then the Service Provider shall be entitled to receive from BCCL Rs._____/- [Rupees _____only] per day for each day of unauthorized use by BCCL of the Business Centre and Workstations. The above amount may be recovered by the Service Provider from the Security Deposit also, till it lasts.

8. INDEMNITY

Each Party shall indemnify and keep the other indemnified against all claims arising from breach by the defaulting party of any of its obligations, warranties or representations including intellectual property rights violation or infringement, breach of the warranties and guaranties, non-performance, defamation, libel, slander, plagiarism, invasion of privacy, or any other claim under this Agreement. The Parties shall also keep the each other indemnified from any third party claims caused due to the negligence of the other party.

9. INTELLECTUAL PROPERTY RIGHTS:

It is expressly agreed between the Parties that BCCL shall have worldwide perpetual rights, title and interest in and to said Event and all elements thereof, in any language, including but not limited to the concept, title, songs, music compilation, sets and all intellectual property rights and the goodwill in any form in connection with the Event shall remain the sole and exclusive property of BCCL at all time and Service Provider or any other party shall have no claims, monetary or otherwise, against or in respect of the same. All the content, video, master tapes, written material and other intellectual property related to the Event shall remain the exclusive property of BCCL at all times, to be used by BCCL, at its discretion, in any manner it deems fit, through any means, media, format and technology, whether now in existence or hereafter discovered.

In the event Service Provider intends to use any material/logo/content or any other intellectual property relating to the Event, it agrees to do so only after prior written permission of BCCL.

BCCL and Service Provider exclusively own and continue to retain all rights and title to their respective trade name/s, trade mark/s and logo/s and nothing contained herein is intended to assign or transfer to any Party, any rights or license to the use of the other Party's trade names/trademarks and logo/s.

Each Party covenants to the other Party that the intellectual properties comprised in their deliverables for the purpose of, in or in relation to the Event shall not infringe in any manner, any copyright, patent, trade secret or other property or intellectual property rights of any third party.

10. CONFIDENTIALITY

Both Parties undertake to keep confidential and not to disclose any information (written or oral) concerning directly or indirectly the business and affairs of the other, which has been obtained or received during the course of performance of this Agreement ("Confidential Information") save that which is:

a. Already in its possession other than as a result of a breach of this clause; or
b. In the public domain other than as a result of a breach of this clause.
c. was subsequently disclosed to it lawfully by a third party who lawfully obtained the same and who was not bound by any obligation of confidence in respect thereof to the disclosing Party.

In the event of any of the Parties becoming legally compelled to disclose any Confidential Information, such Party shall give sufficient notice to the other Party so as to enable the other party to seek a timely protective order or any other appropriate relief. If such an order or other relief cannot be obtained, the Party being required to make such a disclosure shall make the disclosure of the Confidential Information only to the extent that is legally required to authorities constituted under applicable laws in India and no further.

Service Provider acknowledges the research and awards adjudication methodology adopted by BCCL for the Event is proprietary to BCCL and Service Provider shall at no point disclose or transfer the knowledge of the same to any third party during the Term of this Agreement and one year thereafter.

11. FAILURE TO ENFORCE

The failure of either Party to enforce at any time any of the provisions of this Agreement shall not be considered to be a waiver of the right of such Party thereafter to enforce each and every such provision.

12. PRINCIPAL-TO-PRINCIPAL BASIS

It is hereby understood and agreed that this Agreement is on a Principal to Principal basis and neither Party shall describe itself as an agent, partner, or representative of the other Party, or pledge the credit of the other Party in any way or make any representations or give any warranties to any third party which may require the other Party to undertake or be liable for, whether directly or indirectly, any obligation and/or responsibility to any third party or enter into contracts on behalf of the other Party.

13. FORCE MAJEURE:

Neither Party shall be liable or responsible for any failure or delay to perform any of their obligations under this Agreement when such failure or delay is due to force majeure, which term shall include fire, riot, strike, lockout, war, civil commotion, accident, breakdown of plant or machinery, flood, labour unrest, acts of God, omissions or acts of public authorities, changes in law, regulations or policies of the Government or any other reason beyond the control of Parties not caused by the wilful default or negligence of the Party concerned. The Party suffering such force majeure event shall notify the other Party in writing within such time, as may be agreed to by both the Parties in writing, after the occurrence of such force majeure event and shall in every instance, to the extent reasonable and lawful under the circumstances, use its best efforts to remove or remedy such cause with all reasonable dispatch. Where such force majeure event continues for more than _____ days, the non- suffering Party shall be at liberty to terminate this Agreement by giving a written notice to the other Party specifying the reason and date of termination of this Agreement.

14. GENERAL:

14.1. Dispute Resolutions: Any disputes or differences arising out of or pertaining to this Agreement shall be first resolved by the Parties through negotiations, failing which such disputes / differences shall be subject to Arbitration proceedings and each party shall appoint its Arbitrator, who in turn will appoint a third Arbitrator. Arbitration proceedings shall be conducted at Mumbai, India, in accordance with the provisions of The Arbitration and Conciliation Act, 1996, or any statutory modification thereof. The Award passed by the Arbitrator(s) in pursuance of such Arbitration proceedings shall be binding upon both parties hereto. All legal proceedings shall be conducted in the English language.

14.2. Stamp Duty: The stamp duty payable on this Agreement shall be borne by Parties equally.

14.3. Entire Agreement: This Agreement contains the entire agreement between the Parties with respect to the matters covered herein and supersedes all prior proposals, letters of intent, letters, correspondence, written or oral representations or discussions. No alterations, additions or modifications to this Agreement shall be valid and binding unless they are made (and accepted) in writing by both the Parties.

14.4. Notices: All notices shall be given in writing by pre-paid registered post or hand delivery and shall be forwarded to the respective address of the parties given below:

BCCL : Attn.: _____
Address:
_____
_____

The Service Provider: Attn: _____
Address:
_____
_____

14.5. Severability: If any part of this Agreement that is not material is found to be illegal or unenforceable, it will not affect the validity or enforceability of the remainder of this Agreement.

14.6. Confirmation of Signing Authority: By signing this Agreement, the persons signing (other than the witnesses) confirm that each of them has the authority to sign this Agreement and bind the organisation represented by them to this Agreement.

14.7. Limitation of Liability: Under no circumstances will either Party be liable to the other for any indirect, incidental, punitive, special or consequential damages with respect to the subject matter hereof, including lost profits, regardless of the cause or form of action and regardless of whether such damages could have been foreseen or prevented by either Party.

15. Governing Law:

15.1. This Agreement shall be governed by laws of India. The courts in Mumbai shall have exclusive jurisdiction to all matters arising out of this Agreement.

IN WITNESS WHEREOF the Service Provider and BCCL have affixed their signatures to this Agreement on the day, month and year above written.

For _____ **For BENNETT, COLEMAN AND COMPANY LIMITED**

Authorised Signatory

Authorised Signatory

Annexure A

WORKSTATIONS

The workstations in the Business Centre shall include and shall have the following specifications:

Area (sft)	Particulars

ANNEXURE B

Service shall include: